

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #3	CCRB Case #: 201509070	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 10/22/2015 7:55 PM	Location of Incident: Corner of Sheffield Avenue and Sutter Avenue	Precinct: 75	18 Mo. SOL 4/22/2017	EO SOL 4/22/2017	
Date/Time CV Reported Fri, 10/23/2015 12:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/23/2015 12:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Tyler Marshall	11469	955126	PBBN
2. POM Stephen Barounis	03718	956414	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Sousa	05631	959265	REC TNG

Officer(s)	Allegation	Investigator Recommendation
A.POM Tyler Marshall	Abuse: PO Tyler Marshall stopped § 87(2)(b)	
B.POM Stephen Barounis	Abuse: PO Stephen Barounis stopped § 87(2)(b)	
C.POM Tyler Marshall	Discourtesy: PO Tyler Marshall acted discourteously toward § 87(2)(b)	

Case Summary

On October 23, 2015, § 87(2)(b) filed this complaint with the CCRB via telephone.

On October 22, 2015, at approximately 7:55 p.m., § 87(2)(b) was standing outside of a liquor store at the corner Sheffield Avenue and Sutter Avenue in Brooklyn. § 87(2)(b) had just opened a 16 oz. can of Busch Beer, which he had purchased inside of the liquor store. § 87(2)(b)'s can was mostly concealed inside a black plastic shopping bag. Before § 87(2)(b) had a chance to drink from the can, PO Tyler Marshall and PO Stephen Barounis of the 75th Precinct approached § 87(2)(b). PO Marshall and PO Barounis were also with PPO Joseph Sousa from the NYPD Police Academy. PO Marshall said to § 87(2)(b) "You're drinking a beer." § 87(2)(b) denied that he was drinking a beer. PO Marshall told § 87(2)(b) to let him see what was in the bag multiple times. § 87(2)(b) refused repeatedly, because he did not believe that PO Marshall could tell that he was holding a beer. § 87(2)(b) walked a couple of feet away from the officers, but PO Barounis stopped him by blocking his path and PO Marshall asked to see his ID (**Allegations A and B**). § 87(2)(b) complied by pulling out his wallet and starting to take out his ID. Before he could pull his ID out, PO Marshall hit § 87(2)(b)'s arm and thus knocked the can of beer to the ground (**Allegation C**). PO Marshall told § 87(2)(b) that he knew § 87(2)(b) had a beer. § 87(2)(b) was then handcuffed and made to stand against a wall. While against the wall, PO Marshall frisked the outside of § 87(2)(b)'s pockets and waistband (**Allegation D**). PO Marshall then wrote § 87(2)(b) criminal summons# § 87(2)(b) for § 87(2)(b). § 87(2)(b) was then released and the officers walked away from the scene.

Staff from the liquor store adjacent to the incident location informed the CCRB on October 29, 2015 that their video footage of the incident was deleted after 24 hours and thus could not be recovered.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation for this case, § 87(2)(b)
- On December 14, 2015, a FOIL request was sent to the Comptroller's Office for any Notices of Claim filed by § 87(2)(b) for this incident and will be added to the case file upon receipt (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint. § 87(2)(b)
§ 87(2)(b)
- PO Marshall has been a member of the NYPD for two years and has two previous CCRB cases involving four allegations with no substantiated allegations. One of these cases was unsubstantiated and the second was exonerated. § 87(2)(g)
§ 87(2)(b)

- PO Barounis has been a member of the NYPD for one year and this is his first CCRB complaint.

Potential Issues

- § 87(2)(b) refused to identify any civilian witnesses (04 Board Review).

Findings and Recommendations

Allegations not pleaded

- Although PO Marshall said that he frisked the outside of § 87(2)(b)'s pockets and waistline, § 87(2)(b) never alleged this and PO Barounis specifically denied that PO Marshall or any officer ever frisked § 87(2)(b) § 87(2)(g)

Allegation A – Abuse of Authority: PO Tyler Marshall stopped § 87(2)(b)

Allegation B –Abuse of Authority: PO Stephen Barounis stopped § 87(2)(b)

§ 87(2)(b) said that he had just opened his can, which was mostly concealed inside of a black plastic shopping bag. § 87(2)(b) said that the top of the can may have been visible, but no labels were visible to indicate that the can contained alcohol. During the incident, § 87(2)(b) was dressed in jeans and a camouflage jacket. § 87(2)(b) had his wallet, cell phone, and keys in his pockets and was not carrying any items in his hands other than the shopping bag containing the beer. § 87(2)(b) first observed, PO Marshall, PO Barounis, and PPO Sousa on foot approximately one block away from him. Before § 87(2)(b) could drink from his beer, PO Marshall, PO Barounis, and PPO Sousa approached him. PO Marshall told § 87(2)(b) that he was drinking a beer, which § 87(2)(b) denied. PO Marshall then told § 87(2)(b) to let him see what was inside § 87(2)(b)'s bag twice. § 87(2)(b) refused to comply each time. § 87(2)(b) asked PO Marshall if he was being detained and PO Marshall replied no. § 87(2)(b) walked a few feet, but PO Barounis stepped in his path to stop him from walking further and PO Marshall asked § 87(2)(b) for his ID (04 Board Review).

PO Marshall said that he first observed § 87(2)(b) standing in front of the liquor store when he, PO Barounis, and PPO Sousa were approximately one block away and walking in the direction of § 87(2)(b) who was in the course of their patrol. § 87(2)(b) was standing with his back to PO Marshall and when PO Marshall reached a point approximately one foot away from § 87(2)(b) he could see § 87(2)(b) holding a can of beer mostly concealed in a black plastic bag. PO Marshall knew that the can was beer, because he could smell beer from the open can and could also see approximately one centimeter of the label sticking out of the top of the bag. PO Marshall asked what § 87(2)(b) was drinking and § 87(2)(b) responded by closing up the bag and saying that he was drinking water. § 87(2)(b) appeared to be angry, but not intoxicated. PO Marshall instructed § 87(2)(b) to show him what was in the bag, but § 87(2)(b) refused and said, "I'm not giving you my ID. I know my rights." PO Marshall asked § 87(2)(b) for his ID an unknown number of times over the course of approximately five minutes, but § 87(2)(b) refused each time.

PO Marshall then grabbed § 87(2)(b)'s arms, turned him around and handcuffed him (05 Board Review).

PO Barounis said that he first observed § 87(2)(b) standing in front of a liquor store approximately eight to 10 feet from him, PO Marshall, and PPO Sousa. As the officers walked closer to § 87(2)(b) PO Barounis heard PO Marshall ask § 87(2)(b) "What do you have in the bag?" PO Barounis then observed § 87(2)(b) close a black plastic shopping bag he was holding and say, "It's nothing." Based on his training and experience as an officer, PO Barounis believed that § 87(2)(b) was attempting to conceal an open container of alcohol. PO Barounis did not observe any container in § 87(2)(b)'s bag prior to the stop, because § 87(2)(b) closed the bag. PO Barounis could not smell any alcohol and § 87(2)(b) appeared tipsy, but not intoxicated. PO Barounis did not obtain any further information, but assisted PO Marshall in stopping § 87(2)(b) because his responsibility was to back up his partner. PO Marshall then told § 87(2)(b) "I saw you had a beer in the bag. Just show it to me." § 87(2)(b) told PO Marshall that he did not know the can was open and refused to comply. PO Marshall then asked § 87(2)(b) for his ID either 10 or 15 times, but § 87(2)(b) refused to provide his ID after each request. § 87(2)(b) eventually took out his wallet and looked through it, as if to retrieve his ID, but still failed to provide his ID. PO Marshall then took § 87(2)(b)'s wallet and handed it to PO Barounis. PO Marshall then grabbed § 87(2)(b)'s arms, turned him around, and handcuffed him (06 Board Review).

PPO Sousa said that he observed § 87(2)(b) holding a brown paper bag with an open can inside of it. PPO Sousa could not see a label or smell alcohol and § 87(2)(b) did not appear to be intoxicated. As the officers walked closer, PO Marshall pointed out § 87(2)(b) to PPO Sousa and PO Barounis. PO Marshall stopped § 87(2)(b) who responded by angrily telling PO Marshall that he could not see what was in § 87(2)(b)'s bag. PO Marshall told § 87(2)(b) that he saw it before it was in the bag. PO Marshall then asked for § 87(2)(b)'s ID an unknown number of times, but § 87(2)(b) replied "no" to each request while using his cell phone. Eventually, § 87(2)(b) walked away from PO Marshall and PO Barounis, who grabbed § 87(2)(b) by his arms, turned him around and handcuffed him (07 Board Review).

People v. Edmond says that officers cannot stop an individual for a violation based on reasonable suspicion, but only probable cause (People v. Edmond 17 Misc. 3d 1130 (A) 851 N.Y.S. 2nd Dept. 72, 2007) (08 Board Review)

New York Administrative code Chapter 1-Section 10-125 says that consumption of alcohol on streets is a violation (Chp. 1-Sect. 10-125, NYC Administrative Code) (09 Board Review).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation C –Discourtesy: PO Tyler Marshall acted rudely toward § 87(2)(b)

§ 87(2)(b) said that PO Barounis asked him if he had any ID. § 87(2)(b) complied and pulled out his wallet, which was in his back pocket. Before he could take his ID out, PO Marshall hit § 87(2)(b)'s arm, intentionally knocking his bag and can of beer to the ground. PO Barounis then said, "I knew it was a beer" (04 Board Review).

PO Marshall said that he grabbed § 87(2)(b)'s bag with the can of beer inside and dropped it to the ground. PO Marshall then turned § 87(2)(b) around and handcuffed him. PO Marshall explained that he needed to take the can from § 87(2)(b) in order to handcuff § 87(2)(b). PO Marshall said that he dropped the can, because there was no bench or other object close by to put the can onto and, for safety reasons, he did not want to bend over in front of § 87(2)(b) and place the can on the ground. PO Marshall denied ever hitting § 87(2)(b)'s arm to intentionally cause the can to fall (05 Board Review).

PO Barounis said that when PO Marshall grabbed § 87(2)(b)'s arms to handcuff him, § 87(2)(b) dropped his can to the ground himself. PO Barounis confirmed that PO Marshall never hit § 87(2)(b)'s arm to intentionally cause the can to fall and that § 87(2)(b) never complained of PO Marshall knocking his can to the ground (06 Board Review).

PPO Sousa said that PO Marshall and PO Barounis grabbed § 87(2)(b)'s arms to handcuff him and that while performing this action, § 87(2)(b)'s can fell to the ground. PPO Sousa was not sure if either officer intended for § 87(2)(b)'s can to fall to the ground. § 87(2)(b) never complained of his can falling to the ground (07 Board Review).

§ 87(2)(g)

[REDACTED]

Squad: 3

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date